

Hakimuddin v. State of U.P. and Another

High Court of Judicature at Allahabad · Division Bench · 11 February 2020 · WRIT - C No. - 2586 of 2020 · **Writ disposed of; billing dispute relegated to the Executive Engineer under clause 6.5, with one month's stay of coercive recovery.**

HEADNOTE

A dispute as to a bill and arrears after an alleged disconnection is covered by clause 6.5 of the Electricity Supply Code, 2005. Where the petitioner places no material that disconnection was applied for in the manner required by the Code, the High Court will not decide the demand in writ jurisdiction. The Executive Engineer is the appropriate authority and shall consider an application in accordance with law; coercive action on the demand was stayed for one month.

FACTUAL SUMMARY

Hakimuddin's father held a tube-well electricity connection and died on 15 May 2000. The petitioner claimed he applied for disconnection, paid then-outstanding dues, and that the licensee removed the wires, yet bills continued. He deposited amounts in 2001 and again on 9 March 2008. After a long interval the licensee issued a demand dated 12 October 2019 for Rs.2,12,924. He approached the Allahabad High Court contending that no bill could be generated once the connection had been removed.

HOLDING-UNITS

HOLDING-UNIT · UP-2005::6.5

billing and arrears dispute — clause 6.5

HOLDING

A dispute as to a bill and arrears is covered by clause 6.5 of the Electricity Supply Code, 2005, and the Executive Engineer is the appropriate authority. Where the petitioner has not placed material showing that he applied for disconnection in accordance with the procedure under the Code, the High Court will not decide in writ whether a demand can be raised after alleged removal of the connection. An application to the Executive Engineer shall be considered and decided in accordance with law, as far as possible within one month; coercive action on the demand of 12 October 2019 is stayed for that period. ¶ 4-6

PRINCIPLE TAGS

clause-6.5-alternate-remedy The writ was disposed of by sending the bill-and-arrears dispute to the Executive Engineer under clause 6.5, without a merits decision on the demand. ¶ 5

clause-6.5-statutory-remedy-disputed-bill The Court held that the dispute regarding the bill and arrears is covered under clause 6.5 of the Code. ¶ 5

billing-dispute-question-of-fact-executive-engineer-clause-6.5 The Executive Engineer was identified as the appropriate authority to consider and decide the petitioner's application on the disputed demand. ¶ 5

6.5-representation-as-appropriate-remedy The petitioner was directed to apply to the Executive Engineer, who was to consider and decide the representation in accordance with law within about one month. ¶ 5

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — WHETHER THE PETITIONER HAD APPLIED FOR DISCONNECTION IN ACCORDANCE WITH THE PROCEDURE UNDER THE ELECTRICITY SUPPLY CODE, 2005

The Court recorded only that no material was shown; it did not decide whether disconnection had in fact occurred. ¶ 4

NOT DECIDED — CORRECTNESS OF THE DEMAND OF RS.2,12,924 AND WHETHER BILLS COULD BE GENERATED AFTER ALLEGED REMOVAL OF THE CONNECTION

Left to the Executive Engineer under clause 6.5. ¶ 5

A jurisprudence extract prepared from the text of the judgment; not a substitute for the judgment, and to be verified against the original before use.